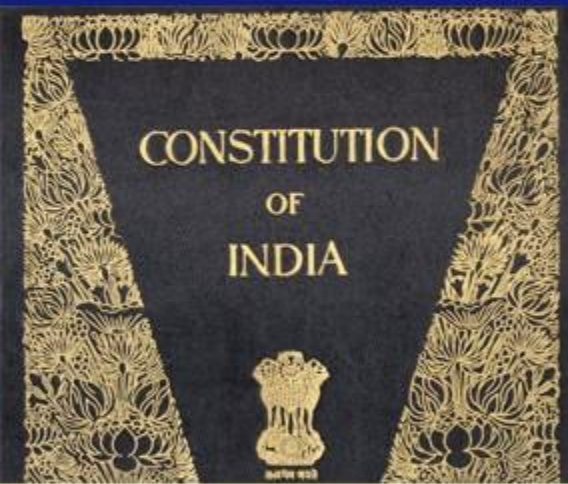


INDIAN POLITY



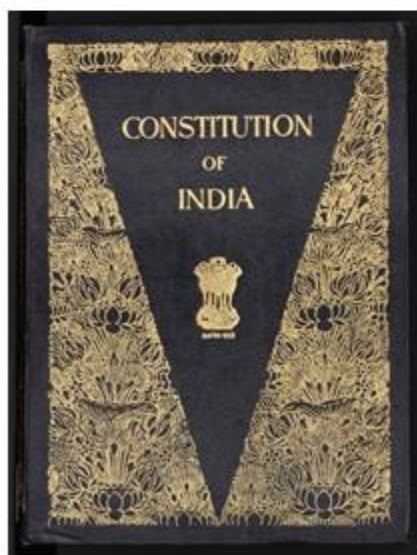
MODULE – 61

PARLIAMENT

COMPOSITION OF HOUSES



— PARLIAMENT OF INDIA —



- 1 The Parliament is the legislative organ of the Union Government.
- 2 It occupies a pre-eminent and central position in the Indian democratic political system due to adoption of the parliamentary form of Government, also known as 'Westminster' model of Government.
- 3 Articles 79 to 122 in Part V of the Constitution deal with the organisation, composition, duration, officers, procedures, privileges, powers and so on of the Parliament.

PARLIAMENT

ORGANISATION OF PARLIAMENT

PARLIAMENT

COUNCIL OF STATES

Second Chamber
or
House of Elders
or
Rajya Sabha

The former represents the states
and union territories of the
Indian Union.

PRESIDENT



HOUSE OF PEOPLE

First Chamber
or
Popular House
or
Lok Sabha

Represents the people of
India as a whole.

PARLIAMENT

WHY IS PRESIDENT A PART OF PARLIAMENT?



5 Though the President of India is not a member of either House of Parliament and does not sit in the Parliament to attend its meetings, he is an integral part of the Parliament.

6 This is because a bill passed by both the Houses of Parliament cannot become law without the President's assent.

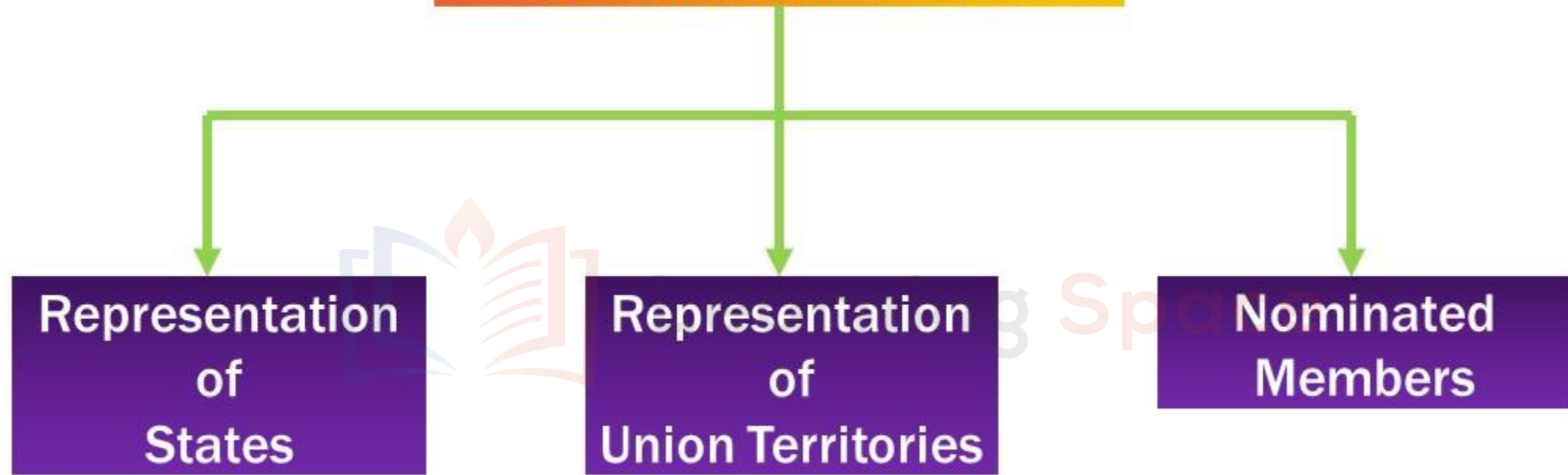
7 He also performs certain functions relating to the proceedings of the Parliament. For example:

- he summons and pro-rogues both the Houses,
- dissolves the Lok Sabha,
- addresses both the Houses,
- issues ordinances when they are not in session, and so on.

PARLIAMENT

COMPOSITION OF THE TWO HOUSES

COMPOSITION OF RAJYA SABHA & LOK SABHA



COMPOSITION OF THE TWO HOUSES

COMPOSITION OF RAJYA SABHA



- 1 The maximum strength of the Rajya Sabha is fixed at 250, out of which, 238 are to be the representatives of the States and Union Territories (elected indirectly) and 12 are nominated by the President.

- 2 At present, the Rajya Sabha has 245 members.

- 3 Of these, 233 members represent the states and the union territories and 12 members are nominated by the President.

- 4 The **Fourth Schedule** of the Constitution deals with the allocation of seats in the Rajya Sabha to the States and Union Territories.

COMPOSITION OF RAJYA SABHA

1 REPRESENTATION OF STATES

- 1 Representatives elected by the elected members of state legislative assemblies.
- 2 Election by system of proportional representation by means of STV.
- 3 The seats allotted to the states on the basis of population.
- 4 Hence, the number of representatives varies from state to state. For eg, Uttar Pradesh has 31 members while Tripura has 1 member only.

2 REPRESENTATION OF UTs

- 1 The representatives are indirectly elected by members of an electoral college specially constituted for the purpose.
- 2 Election by system of proportional representation by means of STV.
- 3 Out of the seven union territories, only two (Delhi and Puducherry) have representation in Rajya Sabha.
- 4 The populations of other five union territories are too small to have any representative in the Rajya Sabha.

PARLIAMENT

COMPOSITION OF THE TWO HOUSES

COMPOSITION OF RAJYA SABHA

3

NOMINATED MEMBERS



1 The President nominates 12 members to the Rajya Sabha from people who have special knowledge or practical experience in art, literature, science and social service.

2 The rationale behind this principle of nomination is to **provide eminent persons a place in the Rajya Sabha without going through the process of election.**

3 It should be noted here that the American Senate has no nominated members.

PARLIAMENT

COMPOSITION OF THE TWO HOUSES

COMPOSITION OF LOK SABHA



1 The maximum strength of the Lok Sabha is fixed at 552.

2 Out of this, 530 members are to be the representatives of the states, 20 members are to be the representatives of the union territories and 2 members are to be nominated by the president from the Anglo-Indian community.

3 At present, the Lok Sabha has 545 members.

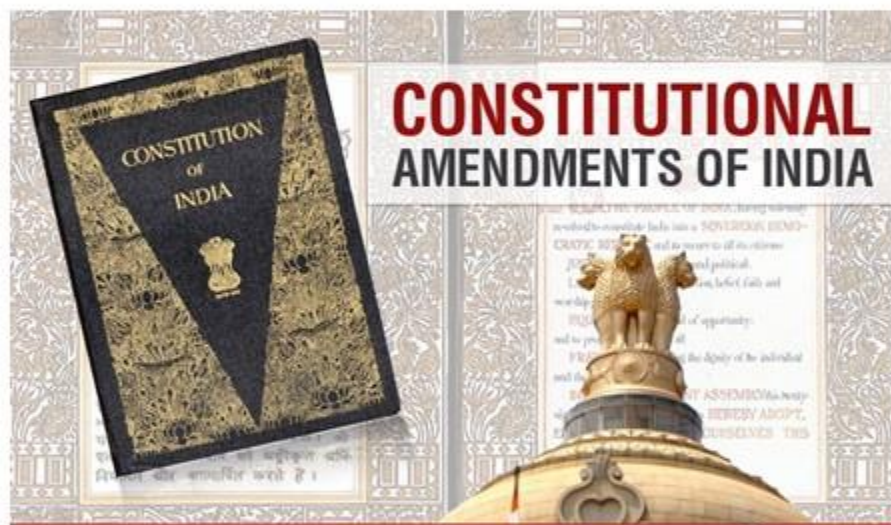
4 Of these, 530 members represent the states, 13 members represent the union territories and 2 Anglo-Indian members are nominated by the President.

PARLIAMENT

COMPOSITION OF THE TWO HOUSES

COMPOSITION OF LOK SABHA

1 REPRESENTATION OF STATES



- 1 The representatives of states in the Lok Sabha are directly elected by the people from the territorial constituencies in the states.

- 2 The election is based on the principle of universal adult franchise.

- 3 Every Indian citizen who is above 18 years of age and who is not disqualified under the provisions of the Constitution or any law is eligible to vote at such election.

- 4 The voting age was reduced from 21 to 18 years by the 61st Constitutional Amendment Act, 1988.

PARLIAMENT

COMPOSITION OF THE TWO HOUSES

COMPOSITION OF LOK SABHA

2 REPRESENTATION OF UTs

- 1 The Constitution has empowered the Parliament to prescribe the manner of choosing the representatives of the union territories in the Lok Sabha.
- 2 Accordingly, the Parliament has enacted the Union Territories (Direct Election to the House of the People) Act, 1965, by which the members of Lok Sabha from the union territories are also chosen by direct election.

3 NOMINATED MEMBERS

- 1 The president can nominate two members from the Anglo-Indian community if the community is not adequately represented in the Lok Sabha.
- 2 Originally, this provision was to operate till 1960 but has been extended till 2020 by the 95th Amendment Act, 2009.

SYSTEM OF ELECTIONS TO LOK SABHA

TERRITORIAL CONSTITUENCIES

- 1 For the purpose of holding direct elections to the Lok Sabha, each state is divided into territorial constituencies.
- 2 Each state is allotted a number of seats in the Lok Sabha in such a manner that the ratio between that number and its population is the same for all states.
- 3 This provision does not apply to a state having a population of less than six millions.
- 4 Each state is divided into territorial constituencies in such a manner that the ratio between the population of each constituency and the number of seats allotted to it is the same throughout the state.
- 5 This is done so as to bring uniformity of representation between the different states and different constituencies in the same state.
- 6 The expression 'population' means the population as ascertained at the preceding census of which the relevant figures have been published.

PARLIAMENT

SYSTEM OF ELECTIONS TO LOK SABHA

READJUSTMENT AFTER EACH CENSUS

Delimitation Commission till now			
Delimitation Commission	Established in	Established Under the Act	
I	1952	Delimitation Commission Act, 1952	
II	1963	Delimitation Commission Act, 1962	
III	1973	Delimitation Act, 1972	
IV	2002	Delimitation Act, 2002	

1 After every census, a readjustment is to be made in
(a) **allocation of seats** in the Lok Sabha to the states.
(b) **division of each state** into territorial constituencies.

2 Parliament is empowered to determine the authority and the manner in which it is to be made.

3 Accordingly, the Parliament has enacted the **Delimitation Commission Acts** in 1952, 1962, 1972 and 2002 for this purpose.

UPSC CIVIL SERVICES
PRELIMS - 2018

MCQs DISCUSSION

POLITY

SESSION - 11

Refer to question number 4, 5, 6 and 7

SYSTEM OF ELECTIONS TO LOK SABHA

RESERVATION OF SEATS FOR SCs AND STs

- 1 The Constitution has abandoned the system of **communal representation**.
- 2 It provides for the reservation of seats for scheduled castes and scheduled tribes in the Lok Sabha on the **basis of population ratios**.
- 3 Originally, this reservation was to operate for **ten years** (ie., up to 1960).
- 4 But, it has been extended continuously since then by 10 years each time.
- 5 Now, under the 95th Amendment Act of 2009, this reservation is to last until 2020.
- 6 Though seats are reserved for scheduled castes and scheduled tribes, they are elected by all the voters in a constituency, **without any separate electorate**.
- 7 A member of scheduled castes and scheduled tribes is also **not debarred from contesting a general** (non-reserved) seat.

SYSTEM OF ELECTIONS TO LOK SABHA

PROPORTIONAL REPRESENTATION NOT ADOPTED

Though the Constitution has adopted the system of proportional representation in the case of Rajya Sabha, it has not preferred the same system in the case of Lok Sabha.



TERRITORIAL REPRESENTATION ADOPTED

- 1 Instead, it has adopted the system of territorial representation for the election of members to the Lok Sabha.
- 2 Under territorial representation, every member of the legislature represents a geographical area known as a constituency.
- 3 From each constituency, only one representative is elected. Hence such a constituency is known as single- member constituency.

PARLIAMENT

SYSTEM OF ELECTIONS TO LOK SABHA

WHY NOT PROPORTIONAL REPRESENTATION?

Though some members of the Constituent Assembly had advocated the system of proportional representation for the election of members to the Lok Sabha, the Constitution has not adopted the system due to two reasons.



- 1 Difficulty for the voters to understand the system (which is complicated) due to **low literacy scale** in the country.
- 2 Unsuitability to the parliamentary government due to the tendency of the system to **multiply political parties** leading to **instability in Government**.

PARLIAMENT

SYSTEM OF ELECTIONS TO LOK SABHA

WHY NOT PROPORTIONAL REPRESENTATION?



3 It is highly expensive

4 It does not give any scope for organising by-elections.

5 It eliminates intimate contacts between voters and representatives

6 It promotes minority thinking and group interests.

7 It increases the significance of party system and decreases that of voter.

BY-ELECTIONS



PARLIAMENT

DURATION OF TWO HOUSES

DURATION OF RAJYA SABHA



- 1 The Rajya Sabha (first constituted in 1952) is a **continuing chamber**, that is, it is a **permanent body and not subject to dissolution**.

- 2 However, **one-third of its members** retire every second year.

- 3 Their seats are filled up by fresh elections and presidential nominations at the beginning of every third year.

- 4 The retiring members are **eligible for re-election and renomination** any number of times.

- 5 The Constitution has not fixed the term of office of members of the Rajya Sabha and left it to the Parliament.

PARLIAMENT

DURATION OF TWO HOUSES

DURATION OF RAJYA SABHA

- 6** Accordingly, the Parliament in the Representation of the People Act (1951) provided that the term of office of a member of the Rajya Sabha shall be six years.



- 7** The act also empowered the president of India to curtail the term of members chosen in the first Rajya Sabha.

- 8** In the first batch, it was decided by lottery as to who should retire.

- 9** Further, the act also authorised the President to make provisions to govern the order of retirement of the members of the Rajya Sabha.

PARLIAMENT

DURATION OF TWO HOUSES

DURATION OF LOK SABHA



1 Unlike the Rajya Sabha, the Lok Sabha is not a continuing chamber.

2 Its normal term is five years from the date of its first meeting after the general elections, after which it automatically dissolves.

3 However, the President is authorised to dissolve the Lok Sabha at any time even before the completion of five years and this cannot be challenged in a court of law.

4 Further, the term of the Lok Sabha can be extended during the period of national emergency by a law of Parliament for one year at a time for any length of time.

5 However, this extension cannot continue beyond a period of six months after the emergency has ceased to operate.

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